



File No.: EXP202309127

RESOLUTION OF FILE OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following:

FACTS

FIRST: On June 29, 2023, a complaint was filed with the Spanish Agency for Data Protection.

The reasons for the complaint are as follows:

The complainant states that they have been a victim of hacking of their networks and that a personal photo of theirs has been combined with another person's intimate parts, making them a victim of sextortion, which is not substantiated. They provide a web address of a blog, which appears to be their personal blog, containing photos of them, where the edited content, which is actually a video, has been published.

Along with the notification, a URL is provided where the reported content appears:

***URL.1

SECOND: On June 30, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed was admitted for processing.

THIRD: The General Sub-Directorate of Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section Two, of the LOPDGDD, being aware of the following points:

The reported video has been published on an active blog of the complainant on the Blogger platform, which is owned by Google, and its privacy policy automatically redirects to Google's privacy policy: <https://policies.google.com/privacy?hl=es>

On June 30, 2023, a precautionary measure was taken with an urgent order for the removal of the video directed to the service provider GOOGLE IRELAND LIMITED S.L.

On July 7, 2023, a response was received by this Agency with the following content:

"In response to your request, we inform you that the Blogger entry whose removal is requested (accessible through the URL: ***URL.1) is no longer available on Blogger. We also inform you that Google Ireland has proceeded to remove the video that was accessible through the following URL: ***URL.2

According to the complainant, the video had been uploaded to the Blogger platform using their own account, which had been hacked.

A request for information was sent to GOOGLE IRELAND LIMITED to attempt to identify the person responsible for the publication. This request was sent on September 14, 2023, and the service provider was asked for the IP address from which the user registered on the platform and uploaded the content.

On October 6, 2023, a response was received to the previous request from GOOGLE IRELAND LIMITED stating:

"We inform you that Google Ireland Limited is not responsible for the requested data and, therefore, cannot provide the information required in the context of the above-referenced procedure. For consumers located in the European Economic Area and Switzerland, Google Ireland Limited is the service provider and the data controller of personal data of users of most Google services. However, in this case, Google LLC is the service provider of the requested account. Therefore, your request should be directed to Google LLC, at the address 1600 Amphitheatre Parkway Mountain View California 94043 United States, and/or to internationalcivil@google.com, and it will be processed as a priority by Google LLC."

On December 13, 2023, a new request for information was made to the service provider GOOGLE LLC, requesting information about the IP associated with the upload of the claimed video.

On January 22, 2024, after no response had been received to the previous request, an email was sent to the address previously provided in the response from GOOGLE IRELAND (internationalcivil@google.com) informing, for informational purposes, of the request notified from this Agency via international certified mail, and attaching information about the content for which identifying information of the person responsible for the upload is sought.

On February 6, 2024, a response was received to the previous email indicating the steps to follow to obtain the requested information.

The inspector responsible for the investigative actions followed the steps outlined in the previous response email to proceed with the download of the requested data.

The data provided by GOOGLE LLC includes the following information:

"Blog Media Profile:

Originating Identifier: ***URL.1

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Resolved Identifier: (...) [Google Account ID]

Resolution Path: ***URL.1 [URL] -> (...) [Google Account ID]

Email Address Associated with Google Account ID: ***EMAIL.1

Service: Blogger

Resource: Media"

Blog User Info{"

"displayName": "24 SATA",

"mailToBloggerName": null,

"email": null,

"legacyUsername": null,

"legacyEmail": null,

"dereferenceld": null,

"dateCreated": "(...)",

"profileUrl": "(...)"

}

From the analysis of this data, it is concluded that it does not record the IP address of the person responsible for the publication of the video, providing only details with the information associated with the Google account (Google Account ID) that was registered and uploaded the content. With this information, it is not possible to identify the person responsible for the publication since the account used belongs to the claimant themselves, being the same one that was used to create the blog on the Blogger platform, which had been hacked according to the claimant's assertion in the complaint.

FUNDAMENTALS OF LAW

I

Competence

In accordance with the functions that Article 57.1 a), f), and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) assigns to each supervisory authority and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative proceedings.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Legitimacy for processing

The physical image of a person, according to Article 4.1 of the GDPR, is a personal data and its protection is therefore subject to this Regulation.

Article 4.2 of the GDPR defines "processing" as: "any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination or any other form of enabling access, comparison or interconnection, limitation, erasure or destruction."

The processing of images that identify or make a person identifiable constitutes the processing of personal data and, therefore, the person who does so must rely on one of the legitimizing grounds indicated in Article 6 of the GDPR. In these cases, as in the case subject to the complaint, the usual legitimizing ground is generally consent. And it is the person who uploads the personal data and the images that can be viewed without any limitations who must demonstrate that they have that consent. For this processing to be carried out lawfully, the provisions of Article 6.1 of the GDPR must be fulfilled, which states:

"1. Processing shall be lawful only if at least one of the following applies:

- a) the data subject has given consent to the processing of their personal data for one or more specific purposes;
- b) processing is necessary for the performance of a contract to which the data subject is party or in order to take steps at the request of the data subject prior to entering into a contract;
- c) processing is necessary for compliance with a legal obligation to which the controller is subject;
- d) processing is necessary in order to protect the vital interests of the data subject or of another natural person;
- e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- f) processing is necessary for the purposes of the legitimate interests pursued by the controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular where the data subject is a child.

The provision in paragraph f) shall not apply to processing carried out by public authorities in the performance of their tasks."

III

Conditions for consent

In relation to the conditions for consent, Article 7 of the GDPR states:

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"1. When the processing is based on the consent of the data subject, the controller must be able to demonstrate that the data subject has consented to the processing of their personal data.

2. If the consent of the data subject is given in the context of a written declaration that also relates to other matters, the request for consent must be presented in such a way that it is clearly distinguishable from the other matters, in an intelligible and easily accessible form, and using clear and plain language. No part of the declaration that constitutes a violation of this Regulation shall be binding.

3. The data subject shall have the right to withdraw their consent at any time. The withdrawal of consent shall not affect the lawfulness of processing based on consent before its withdrawal. Before giving their consent, the data subject shall be informed of this right. It shall be as easy to withdraw consent as it is to give it.

4. In assessing whether consent has been freely given, account shall be taken, to the greatest extent possible, of whether, among other things, the performance of a contract, including the provision of a service, is conditional on consent to the processing of personal data that is not necessary for the performance of that contract."

IV

Conclusion

In order to identify the person or persons who were processing the data of the claimant included in a video, preliminary investigative actions were carried out, as established by Article 67 of the LOPDGDD, which states the following:

“1. Before the adoption of the agreement to initiate proceedings, and once the complaint has been admitted for processing, if any, the Spanish Agency for Data Protection may carry out preliminary investigative actions in order to achieve a better determination of the facts and circumstances that justify the processing of the procedure.

The Spanish Agency for Data Protection shall act in any case when it is necessary to investigate processing that involves massive traffic of personal data.

2. The preliminary investigative actions shall be subject to the provisions of Section 2 of Chapter I of Title VII of this organic law and may not exceed a duration of twelve months from the date of the admission agreement or from the date of the agreement deciding its initiation when the Spanish Agency for Data Protection acts on its own initiative or as a result of communication sent to it by the supervisory authority of another Member State of the European Union, in accordance with Article 64.3 of this organic law.”

After conducting the investigations mentioned in the Facts, the following conclusion has been reached: The removal of the reported content has been achieved.

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After an initial request to GOOGLE IRELAND for the IP address of the uploader, they respond that the data controller is GOOGLE LLC, USA. A second request is made to this new controller, and they provide in response data about the Google account used to upload the video, but not the IP address from which the upload was made. This Google account belongs to the claimant themselves, who claimed in the complaint that they had suffered a hacking of their accounts that led to the subsequent publication of the reported video.

The person responsible for the publication could not be identified.

Thus, as it has not been possible to attribute responsibility for the processing in the publication of the images contained in the video, in accordance with the aforementioned, the Director of the Spanish Agency for Data Protection AGREES:

FIRST: TO FILE the present proceedings.

SECOND: TO NOTIFY this resolution to the claimant.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

940-301023

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